

HOUSE No. 1948**The Commonwealth of Massachusetts**

PRESENTED BY:

Sean Reid

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protect nonhuman primate infants in research institutions and product testing facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Reid</i>	<i>11th Essex</i>	<i>1/13/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>1/17/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/25/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>1/26/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>2/25/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>2/25/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/25/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>2/25/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/25/2025</i>
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>2/10/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>2/25/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>2/25/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>2/18/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>2/25/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/7/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>4/7/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>4/7/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>4/7/2025</i>

<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/7/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/7/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>4/7/2025</i>
<i>Jack Patrick Lewis</i>	<i>7th Middlesex</i>	<i>7/29/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>7/29/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>7/29/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>7/29/2025</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>7/29/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>7/29/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>7/29/2025</i>
<i>Greg Schwartz</i>	<i>12th Middlesex</i>	<i>7/29/2025</i>

HOUSE No. 1948

By Representative Reid of Lynn, a petition (accompanied by bill, House, No. 1948) of Sean Reid and others for legislation to protect nonhuman primate infants in research institutions and product testing facilities. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protect nonhuman primate infants in research institutions and product testing facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 272 of the General Laws is hereby amended by inserting after
2 Section 80G the following new section:-

3 Section 80G1/2.

4 (a) As used in this section, the following words shall have the following meanings unless
5 the context clearly requires otherwise:

6 “Commissioner”, the commissioner of the Massachusetts Department of Public Health.

7 “Contract testing facility”, a partnership, corporation, association, or other legal
8 relationship that tests cosmetics or other products, product formulations, chemicals, or
9 ingredients.

“Product testing facility”, a facility that is using animals for the testing of consumer products, including, but not limited to, cosmetics, pesticides, medical devices, food additives, and ingredients for use in such products.

“Research institution”, any facility employing nonhuman primates in scientific investigation, experiment or instruction or for the testing of drugs or medicines licensed by the commissioner of public health under section 174D.

“Nonhuman primate (NHP)”, any primate species except humans, including but not limited to rhesus macaques, long-tailed (i.e., crab-eating or cynomolgus) macaques, stump-tailed macaques, pig-tailed macaques, squirrel monkeys, owl monkeys, African green monkeys, marmosets, baboons, spider monkeys, capuchin monkeys, and titi monkeys.

(b) A research institution or product testing facility that utilizes infant NHPs in experiments shall not remove or separately house the infants from their respective biological mothers for the purposes of research, experimentation, or product testing.

(c) An infant NHP may be temporarily removed or separately housed from its mother only for the medical welfare of either or both NHPs. Upon removal or separation, psychological and physical distress shall be minimized for both NHPs without use of sedatives, restraint chairs, or similar equipment, and reunion of the NHPs shall not be delayed unless medically necessary.

(d) The prohibition in subsection (b) shall begin at the time of the infant NHP’s birth through his/her first twelve (12) months of life.

(e) The commissioner shall promulgate regulations to implement, enforce, and administer this section.

31 SECTION 2. The commissioner shall promulgate regulations to implement this Act no
32 later than ninety (90) days following its passage. Section 1 shall take effect 90 days after passage
33 of this Act and Section 2 shall take effect upon passage of this Act.